

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #06	CCRB Case #: 201707410	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/08/2017 4:17 PM	Location of Incident: § 87(2)(b) in Brooklyn, En route to and at the 75th Precinct Stationhouse	18 Mo. SOL 3/8/2019	Precinct: 75
Date/Time CV Reported Mon, 09/11/2017 10:05 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/11/2017 10:05 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Garrett Gorham	12001	925375	NARCBBN
2. SGT Alexandru Anghel	00240	934403	NARCBBN
3. DT3 Jamar Goddard	692	948033	NARCBBN
4. POF Cameel Quallis	825	949516	NARCBBN
5. Officers			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kelly Brown	22825	929786	NARCBBN
2. DT3 Rene Castellano	2601	946836	NARCBBN
3. DT3 Charles Ingrassia	1149	938694	NARCBBN
4. DT3 Jorge Morel	07029	933057	NARCBBN
5. POM James Seder	06788	947479	NARCBBN
6. DT3 Thomas Chiusano	4479	950205	NARCBBN
7. DT3 Jason Hawkins	5208	950572	NARCBBN
8. INS Miguel Iglesias	00000	899369	NARCBBN
9. LCD Mark Jablonski	00000	922540	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alexandru Anghel	Abuse: Sergeant Alexandru Anghel entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Alexandru Anghel	Abuse: Sergeant Alexandru Anghel searched § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Garrett Gorham	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Garrett Gorham spoke discourteously to § 87(2)(b)	C . Miscellaneous - Subject Retired
D . DT3 Jamar Goddard	Discourtesy: At § 87(2)(b) in Brooklyn, Detective Jamar Goddard spoke discourteously to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . Officers	Discourtesy: At § 87(2)(b) in Brooklyn and en route to the 75th Precinct Stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)	E . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 11, 2017, § 87(2)(b) filed this complaint with the CCRB via phone on behalf of himself and his child's mother, § 87(2)(b).

On September 8, 2017, at approximately 5:00 PM, Sgt. Alexander Alexandru supervised the entry and search of § 87(2)(b)'s apartment, located at § 87(2)(b) in Brooklyn, by members of the 75 and 73 Modules within Narcotics Borough Brooklyn North, pursuant to a search warrant obtained by PO Garrett Gorham (BR 01) (**Allegations A and B: Abuse of Authority, Exonerated**). § 87(2)(b) and § 87(2)(b) were subsequently placed under arrest.

Inside § 87(2)(b)'s bedroom, PO Gorham allegedly instructed § 87(2)(b) to drop down to his "fucking knees" and announced, "that's the son of a bitch," when § 87(2)(b) confirmed his identity (**Allegation C: Discourtesy, Miscellaneous - Subject Retired**). During this time, Det. Jamar Goddard allegedly asked whether § 87(2)(b) and § 87(2)(b) had been "fucking" (**Allegation D: Discourtesy, Unsubstantiated**). § 87(2)(b) was escorted from the apartment by PO Cameel Quallis. An unidentified officer in the bedroom, PO1, allegedly told § 87(2)(b) to cut the "bullshit" because he knew that § 87(2)(b) was "fucking selling" (**Allegation E: Discourtesy, Officer(s) Unidentified**). PO1 allegedly asked § 87(2)(b) to tell him where the "shit" was, so that the officers could retrieve it without "tearing this motherfucker up." PO1 then allegedly instructed officers to "get this motherfucker out" and told § 87(2)(b) that he could take the shoelaces out of his sneakers because he would not need the "fucking strings" where he was going (within **Allegation E**).

§ 87(2)(b) was escorted from the apartment and placed in a prisoner van alongside § 87(2)(b). § 87(2)(b) and § 87(2)(b) were driven to a second location, where another search warrant was to be executed. A second unidentified officer, PO2, informed § 87(2)(b) and § 87(2)(b) of where they were and explained that they would be taken to a stationhouse and ultimately, Central Booking. § 87(2)(b) stated that they were not informed that they would be processed, but instead released with a summons. PO2 allegedly asked § 87(2)(b) which officer lied to her and told her that "shit" (within **Allegation E**). § 87(2)(b) and § 87(2)(b) were brought to the 75th Precinct Stationhouse and processed.

§ 87(4-b), § 87(2)(g)

There is no video footage of the incident.

Findings and Recommendations

Allegation A - Abuse of Authority: Sergeant Alexandru Anghel entered § 87(2)(b) in Brooklyn.

Allegation B - Abuse of Authority: Sergeant Alexandru Anghel searched § 87(2)(b) in Brooklyn.

It is undisputed that officers from the 75 and 73 Modules within Narcotics Borough Brooklyn North entered and searched § 87(2)(b) in Brooklyn pursuant to the restrictions documented in New York County search warrant § 87(2)(b), which was requested by PO Gorham and obtained on § 87(2)(b), § 87(2)(b) days before the warrant's execution (BR 01).

A police officer may conduct a search of a designated premise for which they have a warrant issued by a district court, the New York City criminal court, or a superior court judge

sitting as a local criminal court. The warrant must be executed within ten days of being sworn out, New York State Criminal Procedure Law § 690 (BR 02).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation C - Discourtesy: At § 87(2)(b) [REDACTED] in Brooklyn, Police Officer Garrett Gorham spoke discourteously to § 87(2)(b) [REDACTED]

As per IAB, it is undisputed that PO Gorham is no longer a member of service as he retired on February 1, 2018 (BR 03).

It is therefore recommended that **Allegation C** be closed as **Miscellaneous - Subject Retired**.

Allegation D - Discourtesy: At § 87(2)(b) [REDACTED] in Brooklyn, Detective Jamar Goddard spoke discourteously to § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] who provided a statement on October 3, 2017, testified that officers entered § 87(2)(b) [REDACTED]'s apartment. Three to five officers subsequently entered § 87(2)(b) [REDACTED]'s bedroom, in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] had been resting on the bed. Det. Goddard (BR 04) paced the bedroom and asked if § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] had been “fucking” in the bedroom. § 87(2)(b) [REDACTED] described Det. Goddard as a skinny, black male who was possibly in his 30s. § 87(2)(b) [REDACTED] denied being under the influence of any drugs during the incident (BR 05).

§ 87(2)(b) [REDACTED] provided a statement at the CCRB on the same day as § 87(2)(b) [REDACTED] and did not allege that he heard an officer ask whether he and § 87(2)(b) [REDACTED] had been “fucking” in the bedroom. § 87(2)(b) [REDACTED] denied being under the influence of any drugs during the incident. § 87(2)(b) [REDACTED] also testified that while he was being fingerprinted at the 75th Precinct Stationhouse, Det. Goddard told him that he would not “bullshit” him and that he had believed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were going to be summonsed and released. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Det. Goddard was the only officer who matched the physical description provided by § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] (BR 04). Det. Goddard testified that given his assigned role as “Animal Control,” he likely would have been the sixth or seventh officer to enter § 87(2)(b) [REDACTED]'s apartment. On this date, by the time Det. Goddard first observed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] they were already handcuffed. Det. Goddard could not recall where other officers were positioned at the time. Det. Goddard denied asking whether § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] had been “fucking” (BR 07).

Sgt. Anghel, Det. Charles Ingrassia, Det. Jorge Morel, PO James Seder, Det. Castellano, PO Thomas Chiusano, PO Quallis, PO Jason Hawkins, PO Gorham, and PO Kelly Brown were all interviewed at the CCRB. PO Quallis and Det. Ingrassia, who were partnered with each other on this day and assigned to the 73 Module, both testified that they were asked to assist with the search warrant execution at the last moment and they were on the ground-level of the apartment building when the rest of the team positioned themselves in front of § 87(2)(b) [REDACTED]'s apartment and gained entry. During the incident, Det. Ingrassia never entered § 87(2)(b) [REDACTED]'s apartment or interacted with § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] (BR 09 and BR 10). § 87(2)(g) [REDACTED]
[REDACTED] All of the officers denied hearing an officer speak

discourteously during the incident, or doing so themselves, and provided testimonies that were consistent with Det. Goddard's account of the incident (BR 08 through BR 17).

§ 87(2)(g) provided three accounts of this incident to the agency between September 11, 2017 and October 3, 2017, and did not allege in his initial complaint narrative, his phone statement, or his sworn testimony, that he heard Det. Goddard ask whether he and § 87(2)(b) had been "fucking" in the bedroom. § 87(2)(b) was the sole individual to allege this.

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation E - Discourtesy: At § 87(2)(b) in Brooklyn and en route to the 75th Precinct Stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) testified that when § 87(2)(b) was escorted from his bedroom, where he remained, an officer, PO1, who he described as a young, Hispanic male, with a medium build, a Puerto Rican accent, and a light complexion, standing approximately 6'0" tall, used various expletives towards him. PO1 told § 87(2)(b) to cut the "bullshit" because he has been around the corner, he knew § 87(2)(b) was "fucking selling." PO1 then asked § 87(2)(b) to "play nice" and tell him where the "shit" was at so they could proceed without "tearing this motherfucker up." PO1 then announced, "Get this motherfucker out of here," and told § 87(2)(b) that they would find it themselves. When § 87(2)(b) put on sneakers, PO1 told § 87(2)(b) to take out the shoelaces because he would not need the "fucking strings" where he was going (BR 06).

§ 87(2)(b) testified that before PO Quallis escorted her from § 87(2)(b)'s bedroom and subsequently his apartment, PO1 repeatedly asked § 87(2)(b) where the "shit" was. When § 87(2)(b) asked PO1 what he was referring to, he responded "crack cocaine." § 87(2)(b) described this officer a Hispanic male with a light complexion who spoke Spanish. § 87(2)(b) also described PO1 as Puerto Rican, but could not provide any further descriptions (BR 07).

§ 87(2)(b) was placed in the prisoner van that already held § 87(2)(b) and they were driven to a second location where another search warrant was being executed. While in the prisoner van, a second unidentified officer, PO2, who he described as a Hispanic, possibly, black male with a light to medium complexion and an average build, informed § 87(2)(b) and § 87(2)(b) that they would be taken to a stationhouse, and ultimately Central Booking. When § 87(2)(b) stated that they were not informed of that and were actually told that they would get summonses and be released, PO2 asked § 87(2)(b) which officer lied to her and told her that "shit" (BR 06). § 87(2)(b) did not allege that an officer spoke discourteously to her while she was in the prisoner van and thus did not provide a description of his appearance (BR 07).

§ 87(2)(b) and § 87(2)(b) failed to participate in a photo viewing (BR 18).

According to the Search Warrant Pre-Execution Plan, there were only four males who identify as Hispanic who were present during the incident: Ins. Miguel Iglesias, a § 87(2)(b) who was the tactical plan ranking officer in charge, Det. Jorge Morel, a § 87(2)(b) whose specific assignment was "Entry Hydro" Det. Rene Castellano, a § 87(2)(b) whose specific assignment was "Entry Ram," and PO Kelly Brown, a § 87(2)(b) who now ranks as a detective and whose specific assignment was "Entry Bunker" (BR 19). § 87(2)(g)

§ 87(2)(g)

PO Brown did not enter § 87(2)(b)'s bedroom and instead remained outside of the apartment in the hallway. The first time PO Brown observed § 87(2)(b) and § 87(2)(b) was when they both were escorted from the apartment. PO Brown could not recall who escorted § 87(2)(b) and § 87(2)(b) at the time (BR 17 and BR 22).

Det. Castellano could not recall whether he entered § 87(2)(b)'s apartment; he mainly recalled remaining in the hallway to secure it. PO Brown and PO Hawkins returned to the hallway shortly after they entered the apartment. Det. Castellano left the apartment building [alone] possibly five to ten minutes after the door was breached, to move the prisoner van. Det. Castellano did not return to the building. Det. Castellano did not recall any officers approaching § 87(2)(b) and § 87(2)(b) [while they were in the prisoner van] and engaging in a conversation. Det. Castellano noted that he would have likely been responsible for fingerprinting § 87(2)(b) at the stationhouse, however he did not recall doing so. Det. Castellano did not converse with § 87(2)(b) and § 87(2)(b) until he transported them to Central Booking (BR 13 and BR 22).

PO Hawkins estimated that he remained in the apartment for no more than five minutes, before he left, went downstairs, and dropped his gear in preparation for the execution of the next search warrant. PO Hawkins did not return to the apartment and did not have any interactions with § 87(2)(b) and § 87(2)(b) in the vicinity of the prisoner van or at the 75th Precinct Stationhouse (BR 15 and BR 22).

Although he was assigned to the Prisoner Van, Det. Goddard was not inside the van until after the search warrant at the second location was executed (BR 07). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Officer(s) Unidentified**.

§ 87(4-b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to 11 CCRB complaints and has been named a victim in 53 allegations (BR 25).
 - § 87(2)(b)
- § 87(2)(b) has been party to two CCRB complaints and has been named a victim in 7 allegations (BR 26).
- PO Gorham is no longer a member of service (BR 27).
- Sgt. Anghel's has been a member of service for 13 years and has been a subject in eight CCRB complaints and 12 allegations, two of which were substantiated (BR 28).

the NYPD imposed the same discipline. § 87(2)(g)

- action § 87(2)(g)

- CCRB complaints and eight allegations, none of which were substantiated (BR 30). § 87(2)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- As of the date of this report, the investigation is still pending receipt of whether the New York City Office of the Comptroller has any records of a Notice of Claim being filed in regards to this complaint.

Squad No.: 6

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer:

Signature

Print Title & Name

Date